

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504173	COUNTY OF RIVERSIDE VS COX	MOTION TO QUASH SERVICE OR DISMISS PETITION FOR WRIT OF MANDATE BY NATHANIEL COX

Tentative Ruling: Respondent's Motion to Quash Service is granted.

Order to Show Cause is set for 9/21/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to timely file proof of service ALL defendants on complaint pursuant to CRC 3.110(b & f) as to PLAINTIFF AND VIDDELL LEE HEARD.

Timeliness of Petition

County states it submitted the Petition to the Court on July 18, 2025. (Tokubo Decl. ¶3.) Then on July 22, 2025, County learned the filing had been rejected. (Id. ¶4.) It then refiled the Petition on July 22, 2025. (Ibid.)

CCP §1094.6(b) states: "Any such petition shall be filed no later than the 90th day following the date on which the decision becomes final." Hearing Officer Stiglitz issued the Decision and Award on April 21, 2025. Ninety days after April 21, 2025, was Sunday July 20, 2025. Respondent contends the 90-day deadline ended on July 19, 2025. However, the ninetieth day after April 21, 2025, is July 20, 2025. Since the deadline ended on a Sunday, the true deadline to file the Petition was Monday July 21, 2025. (CCP §§ 12, 12a.)

The parties disagree about when Hearing Officer Stiglitz's decision became final. CCP §1094.6(b) provides the rules for determining when a decision becomes final: (1) if there is no provision for reconsideration of the decision, the decision is final on the date it is announced; (2) if there is a provision for reconsideration, the decision is final for purposes of this section upon the expiration of the period during which such reconsideration can be sought; or (3) if there is a provision for a written decision or written findings, the decision is final for purposes of this section upon the date it is mailed by first-class mail, postage prepaid, including a copy of the affidavit or certificate of mailing, to the party seeking the writ. The parties do not discuss which of these rules applies to the present action. Petitioner contends the third rule applies and since Hearing Officer Stiglitz only emailed his decision instead of sending it by first-class mail, the ninety-day deadline never started to run. Again, Petitioner does not explain why it believes this rule applies as opposed to the other rules listed in §1094.6(b).

In *Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, a former employee of the Metropolitan Transportation Authority filed petition for judicial review of the authority's decision to terminate his employment. The court found the 90-day deadline never began to run because MTA never provided Herman with notice of his termination. Instead, they sent the notice to Herman's counsel. However, the court also noted that even if notice to Herman's counsel had been sufficient to begin the 90-day period, a petition filed a few days late where the party opposing the petition did not argue the delay resulted in any prejudice was not barred by laches or equitable estoppel.

Here, even if the court finds the 90-day period began on April 21, 2025, County's Petition was only filed one day late. Respondent has not argued this one-day delay caused any prejudice. So, even if the court believes the Petition was filed a day late, the court need not dismiss the petition as Respondent has not demonstrated any prejudice from the minor delay.

Motion to Quash

A defendant may file a motion to quash service of summons on the grounds of lack of jurisdiction under CCP § 418.10(a)(1) "on or before the last day of his or her time to plead or within any further time that the court may for good cause allow." Personal jurisdiction is required in any action that seeks to impose personal liability against a defendant. In opposing a motion to quash, the burden is on the plaintiff to demonstrate by a preponderance of the evidence that all jurisdictional criteria are met. (*Ziller Electronics Lab GmbH v. Superior Court (Grosh Scenic Studios)* (1988) 206 Cal.App.3d 1222, 1232.) If plaintiff meets this burden, "it becomes defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (*Buchanan v. Soto* (2015) 241 Cal.App.4th 1353, 1362.)

Respondent argues he was never served with the Summons and Complaint. Respondent contends he has not been served to this day. As noted above, Petitioner filed a Proof of Service on March 25, 2026. That POS indicates Attorney Chulak was served with the Petition for Writ of Mandate on February 22, 2025.

First, the date on the POS is clearly incorrect. Hearing Officer Stiglitz's decision was not communicated to the parties until April 21, 2025. County did not file the Petition until July 22, 2025. County could not have served a Summons for the Writ Petition before the decision it was challenging was even made. This POS is not valid.

Second, Attorney Chulak states he only ever received an email containing "an apparent draft of a Petition that was not filed with the court, contained no case number, no court stamp, nor any indicia that any initiating pleading was filed with the court." (Chulak Decl. ¶5.) He never executed a Notice and Acknowledgement of Receipt of Summons relating to this action. (¶6.) Respondent Cox also states he has never been served with a Summons in this action or executed a Notice and Acknowledge of Receipt. (Cox Decl. ¶¶3-6.)

In Opposition to the motion, Attorney Viddell Lee Heard states his secretary, Linda Tokubo, served Attorney Chulak with a copy of the Petition on July 18, 2025. (Heard Decl. ¶4.) Attorney Heard indicates Attorney Chulak and his firm have "always behaved in a manner that indicated...his firm was Respondent's counsel in this matter." (Heard Decl. ¶5.) Linda Tokubo provides a copy of the email she sent to Attorney Chulak on July 18, 2025. (Tokubo Ex. A.) The email includes an attached Petition that is not file-stamped and does not otherwise indicate it was filed with the court.

"A writ must be served in the same manner as a summons in a civil action, except when otherwise expressly directed by order of the Court." (CCP §1096.)

Here, Petitioner contends it properly served Respondent by emailing Attorney Chulak a copy of the writ Petition. The copy sent to Attorney Chulak did not have a file stamp. There was no documentation or other indication to show the Petition had been filed with the Court. County's one attempt to provide the Court with a proof of service was defective, as discussed above. In fact, the POS County previously provided does not indicate County

served Attorney Chulak on July 18, 2025, as it now contends. County has not once provided a Proof of Service indicating it ever served Respondent with the Petition. The email from Tokubo to Attorney Chulak is simply not enough. There is no evidence Respondent ever received notice that an actual Petition had been filed. Clearly Respondent learned the Petition was filed but, importantly, actual notice of the action is not itself a valid substitute for proper service of process and will not confer jurisdiction over defendant when there has been a complete failure to comply with the statutory service of process requirements. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392.) A defendant is under no duty to respond in any way to a defectively served summons. It makes no difference that defendant had actual knowledge of the action. Such knowledge does not dispense with statutory requirements for service of summons. (*Kappel v. Bartlett* (1988) 200 Cal.App.3d 1457, 1466.)

County has failed to provide any evidence that Respondent was ever served with the Petition once it was filed. In Opposition to the instant motion County does not even attempt to provide a proof of service. Rather, County relies on the email Tokubo sent to Attorney Chulak with an unfiled copy of the Petition. This is not enough to satisfy the service requirements.

General Appearance

County contends Respondent has made general appearances in this action and thus has waived his right to challenge defects in service. Personal jurisdiction may be asserted over nonresident defendants who make a general appearance in the action, thereby dispensing with the necessity of personal service: “A general appearance by a party is equivalent to personal service of summons on such party.” (CCP § 410.50(a); see *Fireman’s Fund Ins. Co. v. Sparks Const., Inc.* (2004) 114 Cal.App.4th 1135, 1145 (by making general appearance, defendant forfeits any objection to defective service even if unaware such objection was available).) “If the defendant raises an issue for resolution or seeks relief available only if the court has jurisdiction over the defendant, then the appearance is a general one.” (*Factor Health Mgmt. v. Sup.Ct. (Apex Therapeutic Care, Inc.)* (2005) 132 Cal.App.4th 246, 250.)

Here, Respondent’s counsel filed a Notice of Remote Appearance for the January 26, 2026, Status Hearing in Department 7. That Status Hearing was not heard. (See 1/22/26 Minute Order.) Respondent did not appear generally at this time.

On February 19, 2026, Respondent’s counsel again filed a Notice of Remote Appearance for the Status Hearing on February 26, 2026. The Court’s February 26, 2026, Minute Order indicates Steve Schulak *specialy appeared* for Nathaniel Cox. This does not constitute a general appearance. A lawyer’s or nonresident defendant’s characterization of an appearance as a “special appearance” to contest jurisdiction is not controlling. If a party seeks relief on any basis other than lack of personal jurisdiction, it is a general appearance: “One cannot alter by reservation the personal jurisdiction conferred by minimum contacts or consent.” (*Szynalski v. Sup.Ct. (Rosenthal & Co., LLC)* (2009) 172 Cal.App.4th 1, 10.) Respondent did not seek any relief from the court at this time. Counsel merely attended a Status Hearing.